

STATE OF NEW YORK

1012--A

Cal. No. 5

2025-2026 Regular Sessions

IN ASSEMBLY

(Prefiled)

January 8, 2025

Introduced by M. of A. BARRETT, CUNNINGHAM, SANTABARBARA, ROSENTHAL, SHIMSKY, JACOBSON, LEE, CLARK, LUCAS -- read once and referred to the Committee on Energy -- reported from committee, advanced to a third reading, amended and ordered reprinted, retaining its place on the order of third reading

AN ACT to amend the public authorities law, in relation to requiring the New York state energy and research development authority to develop a comprehensive electric vehicle fast charging station implementation plan

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. The public authorities law is amended by adding a new
2 section 1874 to read as follows:

3 § 1874. Comprehensive electric vehicle fast charging station implemen-
4 tation plan. 1. The authority, in consultation with the New York power
5 authority, the department of transportation, the department of environ-
6 mental conservation, the department of public service and the Fast
7 Charge NY working group established pursuant to subdivision five of this
8 section shall, no later than twenty-four months after the effective date
9 of this section, develop a comprehensive electric vehicle fast charging
10 station implementation plan to facilitate the deployment of fast elec-
11 tric vehicle charging stations statewide. Such comprehensive electric
12 vehicle fast charging plan shall incorporate the findings of the needs
13 evaluation set forth in part QQ of chapter fifty-eight of the laws of
14 two thousand twenty-four. As used in this section, the term "the plan"
15 shall mean the comprehensive electric vehicle fast charging station
16 implementation plan developed pursuant to this subdivision.

17 2. Such plan shall at a minimum include:

18 (a) methods to increase public availability;

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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1 (b) geographic information pertaining to current fast charger deploy-
2 ment including specific information relating to the fast chargers being
3 deployed. Such information shall include, but not be limited to the
4 number of ports and charging capacity;

5 (c) the number and location of fast chargers currently in development
6 and estimated future needs for the next five years;

7 (d) each state and utility-administered program currently, or within
8 the prior two years, providing funding or oversight of electrical vehi-
9 cle charging stations, including but not limited to Charge NY and Charge
10 Ready NY;

11 (e) methods to prevent overlap of state programs and maximize fast
12 charger coverage;

13 (f) guidance to municipalities for technical and planning assistance
14 to facilitate the adoption of curbside charging;

15 (g) support and guidance to facilitate the deployment of charging
16 stations for existing commercial fleets to help offset air pollution in
17 disadvantaged communities, as defined in section 75-0101 of the environ-
18 mental conservation law;

19 (h) areas currently underserved by fast charger coverage; and

20 (i) requirements for compliance with labor standards for the manufac-
21 ture, construction, installation and maintenance of fast charging
22 stations, including but not limited to Buy American provisions for
23 component parts and manufacture of infrastructure related to the charg-
24 ing stations, and prevailing wage pursuant to section two hundred twenty
25 of the labor law for construction, installation and maintenance of fast
26 charging stations.

27 3. Once completed, the authority shall publish the plan on its website
28 and provide for a thirty-day public comment period prior to adoption of
29 such plan.

30 4. The authority shall publish a final report following adoption of
31 the plan that shall include guidance for the deployment of electric
32 vehicle fast charging stations statewide.

33 5. (a) The authority shall establish a "Fast Charge NY working group"
34 consisting of thirteen members, including one member representing each
35 statewide municipal organization; two members representing environmental
36 justice groups; two members representing statewide environmental groups;
37 two members representing public utilities; and two members representing
38 charging station developers, which shall include a New York based devel-
39 oper. Such working group members shall be appointed as follows: five
40 members shall be appointed by the governor; four members shall be
41 appointed by the temporary president of the senate and four members
42 shall be appointed by the speaker of the assembly.

43 (b) Members of the working group shall be reimbursed for their neces-
44 sary and actual expenses incurred in the performance of their duties as
45 members of the working group.

46 6. The authority shall update the plan annually.

47 § 2. This act shall take effect immediately.